

CV-26-001860 SELFHELP ENTERPRISES vs NORTHEAST TERRITORIES PATTERSON LLC – a) Defendant Hartley Patterson, LLC’s Demurrer to Plaintiff’s First, Third, Fourth, Fifth and Sixth Action - OVERRULED; b) Defendant 50 Fathom Curve, LLC’s Demurrer to Amended Complaint – OVERRULED; c) Defendant Bruce Harrington’s Demurrer to Plaintiff’s Amended Complaint – SUSTAINED, with leave to amend; d) Defendant Bruce Harrington’s Motion to Strike Plaintiff’s Amended Complaint – DENIED, as MOOT.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: a) The Court finds that the First Amended Complaint alleges sufficient factual support for the stated claims, including the alter ego allegations which form a substantial basis for such claims. The Court further notes that several of Defendant's arguments appear to turn on the evaluation of extrinsic evidence, which is inappropriate on demurrer. b) The Court finds that the First Amended Complaint alleges sufficient factual support for the stated claims, including the alter ego allegations which form a substantial basis for such claims. The Court further notes that several of Defendant's arguments appear to turn on the evaluation of extrinsic evidence, which is inappropriate on demurrer. c) The Court finds that the First Amended Complaint fails to allege sufficient factual support for the stated claims against Defendant Harrington. Specifically, the pleading fails to allege facts which, if established, would entitle Plaintiff to seek recovery from Defendant Harrington as the alter ego of the subject corporate entities. d) The motion is MOOT, in view of the Court's ruling on the related demurrer.

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b) The Court finds that the First Amended Complaint alleges sufficient factual support for the stated claims, including the alter ego allegations which form a substantial basis for such claims. The Court further notes that several of Defendant's arguments appear to turn on the evaluation of extrinsic evidence, which is inappropriate on demurrer.

c) The Court finds that the First Amended Complaint fails to allege sufficient factual support for the stated claims against Defendant Harrington. Specifically, the pleading fails to allege facts which, if established, would entitle Plaintiff to seek recovery from Defendant Harrington as the alter ego of the subject corporate entities.

d) The motion is MOOT, in view of the Court's ruling on the related demurrer.